AMENDED AND RESTATED CERTIFICATE OF INCORPORATION

Governing provision

Series A class consent is required before creating senior preferred stock.

Article I - Name; Restatement and Filing Lineage

The name of the corporation is Helioscope Robotics, Inc. (the Corporation). This Amended and Restated Certificate of Incorporation restates, integrates and further amends the Certificate of Incorporation of the Corporation as heretofore amended and restated, and has been duly adopted in accordance with the General Corporation Law of the State of Delaware (8 Del. C. § 242) and the provisions governing a restated certificate of a Delaware corporation (8 Del. C. § 151).

The original Certificate of Incorporation of the Corporation was filed with the Secretary of State of the State of Delaware, and was thereafter amended by a certificate of amendment filed in connection with the Series Seed Preferred Stock financing, amended and restated in connection with the Series A Preferred Stock financing, and further amended by a certificate of amendment increasing the number of authorized shares of Common Stock. Each such filing is identified in the certification accompanying this instrument.

This instrument has been adopted by the Board of Directors and approved by the stockholders of the Corporation, including the separate vote of each class and series whose approval is required by the certificate as previously in effect. Upon filing, it supersedes the certificate as previously in effect in its entirety, except that a designation which by its terms survives only as to shares already outstanding continues as provided in Section 14(c) of Article IV.

Article II - Registered Office and Registered Agent

The address of the registered office of the Corporation in the State of Delaware is the address stated in the certification accompanying this instrument, and the name of the registered agent of the Corporation at that address is the agent stated there. The Board of Directors may change the registered office or the registered agent without amending this certificate, in the manner the Delaware corporation statute provides.

The principal place of business of the Corporation is in Fremont, California, and the Corporation is qualified to transact business in each jurisdiction in which its activities require qualification. Neither the location of the principal place of business nor a change in it affects the internal affairs of the Corporation, which are governed by the General Corporation Law of the State of Delaware.

Article III - Purpose and Powers

The purpose of the Corporation is to engage in any lawful act or activity for which a corporation may be organized under the Delaware corporation statute. The Corporation's present business is the design, manufacture, deployment and servicing of autonomous mobile robots and of the fleet orchestration software that coordinates them in distribution and fulfilment facilities, together with the software, data and service activities incidental to that business.

The Corporation has all powers a Delaware corporation may exercise, including the power to hold and license intellectual property, to contract with customers on a recurring service basis, to incur indebtedness and grant security, and to form and hold interests in subsidiaries. The statement of the Corporation's present business in this Article is descriptive and does not limit the purpose stated in the first sentence of this Article.

Article IV, Section 1 - Authorized Capital

The Corporation is authorized to issue two classes of stock, designated respectively Common Stock and Preferred Stock. The total number of shares of each class which the Corporation is authorized to issue, and the number of shares designated to each series of Preferred Stock, are set forth in the authorized capital schedule filed with and forming part of this certificate. Each share of each class has the Stated Par Value set forth in that schedule.

The Preferred Stock is issuable in series. Three series are designated by this certificate: Series Seed Preferred Stock, Series A Preferred Stock and Series B Preferred Stock. The Board of Directors may not designate a further series,

fix the rights of a further series, or issue shares of a series not designated by this certificate, except with the approvals required by Section 7 of this Article.

The Original Issue Price of each series is the price per share at which shares of that series were first issued, as stated in the purchase agreement under which they were issued, subject to proportional adjustment for any stock split, combination or similar event affecting that series. The Original Issue Price of a series is not changed by an adjustment to the Applicable Conversion Price of that series.

Article IV, Section 2 - Common Stock

Each share of Common Stock entitles the holder of record to one vote on each matter submitted to a vote of the stockholders, and the holders of Common Stock vote together with the holders of Preferred Stock as a single class except where this certificate or the Delaware corporation statute requires a separate vote. The holders of Common Stock have the inspection rights the statute confers on a stockholder (8 Del. C. § 220), in addition to any contractual right.

The holders of Common Stock are entitled to receive dividends when, as and if declared by the Board of Directors out of assets lawfully available for the purpose, subject in each case to the prior rights of the holders of Preferred Stock under Section 3 of this Article. No dividend may be declared or paid on the Common Stock except as Section 7 of this Article permits.

On a liquidation, dissolution or winding up of the Corporation, the holders of Common Stock are entitled to receive the assets of the Corporation remaining after the distributions required by Section 4 of this Article have been made, distributed rateably among them in proportion to the number of shares held. The Common Stock is not convertible, is not redeemable, and carries no preemptive right except as conferred by contract.

Article IV, Section 3 - Dividend Rights of the Preferred Stock

The holders of each series of Preferred Stock are entitled to a dividend accruing on the Original Issue Price of that series, at the rate, with the cumulation and with the compounding convention designated for that series in the designation schedule filed with this certificate. A dividend accrues from the Original Issue Date of the share whether or not declared and whether or not assets are lawfully available for its payment at the time of accrual.

Where a dividend period begins or ends other than on an anniversary of the Original Issue Date, the dividend for that period accrues on the day count convention designated for the series. Unpaid Accrued Dividends on a share are added to the Liquidation Amount for that share under Section 4 of this Article, and are paid before any distribution is made to the holders of Junior Stock.

No dividend or other distribution may be declared or paid on any share of Junior Stock, and no dividend may be paid on a series of Preferred Stock other than in accordance with its designation, unless the Unpaid Accrued Dividends on each senior series have been paid or set aside for payment. A dividend declared on the Common Stock in shares of Common Stock is governed by Section 10 of this Article and not by this Section.

A dividend is not payable in shares of the series on which it accrues, and no holder may elect to convert an Unpaid Accrued Dividend into additional shares of Preferred Stock. On a conversion of shares of a series into Common Stock, the treatment of the Unpaid Accrued Dividends on the converted shares is the treatment designated for that series, and Section 9 of this Article states the mechanics by which that treatment is effected.

Article IV, Section 4 - Liquidation Preference and Order of Distribution

On a liquidation, dissolution or winding up of the Corporation, whether voluntary or involuntary, and on a Deemed Liquidation Event, the Distributable Assets are distributed in the following order: first, to the holders of Senior Stock, the Liquidation Amount for each share held; second, to the holders of Parity Stock, rateably as between the series constituting Parity Stock, the Liquidation Amount for each share held; and third, as Section 4(c) and Section 2 of this Article provide.

For the purposes of this Section, Senior Stock means the Series B Preferred Stock, Parity Stock means the Series A Preferred Stock and the Series Seed Preferred Stock, which rank equally with one another and junior to the Senior Stock, and Junior Stock means the Common Stock and any series hereafter designated as junior. The Liquidation Amount for a share is the amount designated for its series in the designation schedule, plus the Unpaid Accrued Dividends on that share.

If the Distributable Assets are insufficient to pay the Liquidation Amount for every share of a rank in full, the assets available are distributed among the holders of shares of that rank in proportion to the full Liquidation Amounts each would otherwise receive, and no distribution is made to a junior rank. A holder is not entitled to interest on an unpaid Liquidation Amount and has no claim against a junior holder who received a distribution before the deficiency arose.

After the Liquidation Amounts have been paid in full, the holders of a series designated as participating share in the remaining Distributable Assets with the holders of Common Stock on an as-converted basis, until the aggregate amount received in respect of a share of that series equals the Participation Cap designated for it. A holder that would receive more by converting its shares into Common Stock and sharing rateably may make that election, share by share, by notice given before the distribution.

Article IV, Section 5 - Deemed Liquidation Events and Valuation

A Deemed Liquidation Event occurs on a merger or consolidation in which the Corporation is a constituent party and in which the shares of capital stock of the Corporation outstanding immediately before the transaction do not represent a majority of the voting power of the Surviving Entity immediately after it, other than a merger effected solely to change the Corporation's domicile. A merger is treated as effected under the merger provisions of the Delaware corporation statute (8 Del. C. § 251).

A Deemed Liquidation Event also occurs on a Sale of Assets, meaning a sale, lease, exclusive licence or other disposition, in a single transaction or a series of related transactions, of all or substantially all of the assets of the Corporation and its Subsidiaries taken as a whole, or of the intellectual property that is material to the Corporation's business, other than a licence granted in the ordinary course of business.

Unless the Requisite Holders of each series entitled to a preference elect otherwise by notice given before the closing, the Corporation must effect a distribution under Section 4 of this Article on a Deemed Liquidation Event. Where the Corporation does not have sufficient lawfully available assets to do so, it must distribute what is lawfully available and, as further assets become lawfully available, apply them to the deficiency without a further election.

Consideration other than cash is valued by a Valuation Determination made in good faith by the Board of Directors, and securities are valued on the basis designated for the series entitled to receive them, taking account of any restriction on transfer. Consideration placed in escrow or subject to a holdback is treated as received only when and to the extent released, and any amount payable to management under a carve-out arrangement is applied to the proceeds base before the Liquidation Amounts are computed.

Governing provision and cross-references

Series A class consent is required before creating senior preferred stock.

This provision is read with the defined terms, the schedules to this instrument, and any consent or waiver recorded against it; a summary prepared from it does not vary it.

Article IV, Section 6 - Voting Rights

Each holder of Preferred Stock is entitled, on each matter submitted to a vote of the stockholders, to the number of votes equal to the number of shares of Common Stock into which the shares held are then convertible, and votes together with the holders of Common Stock as a single class except where a separate vote is required. A fractional vote is not created; the aggregate as-converted number for a holder is rounded down to the nearest whole number of Voting Shares.

Each series of Preferred Stock votes as a separate series, and not together with any other series, on each matter for which Section 7 of this Article requires the approval of that series, and on each matter for which the Delaware corporation statute requires a separate class vote. The Requisite Series B Holders, the Requisite Series A Holders and the Requisite Seed Holders each means the holders of the proportion of the outstanding shares of that series designated in the designation schedule.

Any action which may be taken at a meeting of stockholders may be taken by Written Consent in the manner the statute permits (8 Del. C. § 228), provided that a consent purporting to give an approval required by Section 7 of this

Article is effective only if signed by the Requisite Holders of each series whose approval that Section requires. Notice of an action taken by consent is given to the holders who did not sign it.

Article IV, Section 7 - Protective Provisions

The Corporation may not, and may not permit a Subsidiary to, take any of the following actions without the approval of the Requisite Holders of each series whose approval is designated for that action in the designation schedule, given by vote at a meeting of that series voting as a separate series or by Written Consent of that series: amend, alter or repeal a provision of this certificate or of the bylaws in a manner that adversely affects a series; authorize or create, or increase the authorized number of, any class or series of capital stock ranking senior to or on a parity with an existing series; or increase or decrease the authorized number of shares of any series of Preferred Stock.

The following actions require the same approval: a liquidation, dissolution or winding up of the Corporation, or the effecting of a Deemed Liquidation Event; the declaration or payment of a dividend or other distribution other than as Section 3 of this Article permits; the redemption or repurchase of any share of capital stock other than a Permitted Repurchase; a change in the authorized number of directors constituting the Board of Directors; the creation or incurrence of indebtedness above the threshold designated in the designation schedule; the adoption of an equity incentive plan or an increase in the number of shares reserved under an existing plan; the entry into a transaction with an affiliate of the Corporation or of a significant holder; and a change in the Corporation's line of business.

A Permitted Repurchase means a repurchase of shares of Common Stock from a person whose service to the Corporation has ceased, at a price not exceeding the price paid for those shares, effected under an agreement approved by the Board of Directors. A Subsidiary means an entity of which the Corporation owns, directly or indirectly, securities carrying a majority of the voting power.

An approval given under this Section may be limited in its terms to a specified action, may be conditioned, and may be given for a period stated in it. A waiver of a right conferred by this Section is effective only if given by the Requisite Holders of the series whose right is waived, is limited to the matter described in it, and expires when its stated period expires. An expired waiver does not authorize a later action of the same kind, and a series does not lose a right under this Section by having waived it on an earlier occasion.

Article IV, Section 8 - Optional Conversion

Each share of each series of Preferred Stock is convertible, at the option of the holder and at any time, into the number of shares of Common Stock obtained by dividing the Original Issue Price of that series by the Applicable Conversion Price for that series then in effect. The Applicable Conversion Price for a series is initially the Original Issue Price of that series and is subject to adjustment under Sections 10 and 11 of this Article.

The conversion right is exercisable in whole or in part in respect of the shares held by a holder, and an exercise in part does not affect the rights attaching to the shares not converted. A share that has been converted is cancelled and is not reissued as a share of that series, and the holder ceases to have any right in respect of it other than the right to receive the Conversion Shares and any amount payable under Section 9(d) of this Article.

A holder that converts shares of a series in connection with a distribution under Section 4 of this Article does so by the election that Section provides rather than under this Section, and the Effective Time of that conversion is immediately before the distribution.

Article IV, Section 9 - Mechanics of Conversion

A holder exercises the conversion right by delivering to the Corporation, at its principal office or at the office of its transfer agent, a written notice stating the number of shares to be converted and the name in which the Conversion Shares are to be issued, together with the certificate representing the shares converted or, for shares held in book-entry form, an instruction to the transfer agent in the form the Corporation prescribes. A lost certificate may be replaced by an affidavit and an indemnity in the Corporation's customary form.

The conversion is effective at the Effective Time, which is the time at which the notice and the certificate or instruction are delivered, and the person entitled to receive the Conversion Shares is treated as a holder of record of them

from that time. The Corporation issues the Conversion Shares, and delivers a certificate or records a book-entry notation for them, as soon as practicable after the Effective Time.

No fractional share of Common Stock is issued on conversion. The number of Conversion Shares issuable to a holder is computed on the aggregate number of shares of a series being converted by that holder, and any resulting fraction is settled by a payment in cash determined on the basis designated for the series. The Corporation pays any issue or transfer tax arising on the issue of the Conversion Shares, other than a tax payable because the Conversion Shares are issued in a name other than that of the converting holder.

The Corporation reserves out of its authorized but unissued Common Stock, at all times, the Reserved Shares, being a number of shares sufficient to effect the conversion of all outstanding shares of Preferred Stock. If at any time the Reserved Shares are insufficient, the Corporation must take the corporate action necessary to increase its authorized Common Stock to a sufficient number, including the solicitation of the stockholder approval that action requires.

The Corporation may not, by amendment of this certificate or through a reorganization, transfer of assets, consolidation, merger, dissolution, issue or sale of securities, avoid or seek to avoid the observance of any provision of Sections 8 to 12 of this Article, and must at all times act in good faith to carry out those provisions and to protect the conversion rights of the holders against impairment.

Article IV, Section 10 - Adjustments for Splits, Combinations and Distributions

If the Corporation subdivides the outstanding Common Stock, whether by stock split, stock dividend or otherwise, the Applicable Conversion Price of each series in effect immediately before the subdivision is proportionately decreased. If the Corporation combines the outstanding Common Stock, whether by reverse split or otherwise, that Applicable Conversion Price is proportionately increased. An adjustment under this Section takes effect at the close of business on the date the subdivision or combination becomes effective.

If the Corporation makes a distribution to the holders of Common Stock payable in securities of the Corporation other than Common Stock, or in evidences of indebtedness, assets or rights to subscribe, each holder of Preferred Stock is entitled to receive, on conversion, the securities, indebtedness, assets or rights it would have received had it converted immediately before the record date for the distribution, in addition to the Conversion Shares.

On a recapitalization, reclassification or exchange of the Common Stock other than a transaction provided for elsewhere in this Article, each share of Preferred Stock becomes convertible into the kind and amount of securities, cash or other property the holder would have received had it converted immediately before the transaction. The Corporation must make provision so that the provisions of Sections 8 to 12 of this Article continue to apply, with appropriate adjustment, to the securities, cash or property so receivable.

An adjustment under this Section is made successively whenever an event described in it occurs, and an adjustment made under this Section does not give rise to a further adjustment under Section 11 of this Article in respect of the same event. No adjustment under this Section may reduce the Applicable Conversion Price of a series below the Stated Par Value of the Common Stock.

Article IV, Section 11 - Adjustment on a Dilutive Issuance

Options means rights, options or warrants to subscribe for, purchase or otherwise acquire Common Stock or Convertible Securities. Convertible Securities means any evidence of indebtedness, share or other security convertible into or exchangeable for Common Stock, other than Options. Additional Shares of Common Stock means all shares of Common Stock issued, or deemed issued under Section 11(d), by the Corporation after the Original Issue Date of a series, other than an Excluded Issuance in respect of that series.

A Dilutive Issuance occurs, in respect of a series, when the Corporation issues or is deemed to issue Additional Shares of Common Stock for a consideration per share less than the Applicable Conversion Price of that series in effect immediately before the issuance. On a Dilutive Issuance the Applicable Conversion Price of the affected series is adjusted in accordance with the adjustment formula designated for that series in the designation schedule filed with this certificate, applying the definitions in this Section.

Excluded Issuances, in respect of a series, are the categories designated for that series in the designation schedule, which include shares issued on conversion of Preferred Stock, shares issued or issuable under an equity incentive plan approved as Section 7 of this Article requires, shares issued as a dividend or distribution covered by Section 10, shares issued on the exercise of an Option or the conversion of a Convertible Security outstanding on the Original Issue Date of that series, shares issued in a transaction approved by the Requisite Holders of that series, and shares issued to a lender or lessor in connection with a debt or equipment facility approved by the Board of Directors.

On the issue of an Option or a Convertible Security, the maximum number of shares of Common Stock issuable on its exercise or conversion is deemed issued at the time of the issue of the Option or Convertible Security, for the consideration receivable on its issue and on its exercise or conversion. If an Option or Convertible Security expires or is cancelled without having been exercised or converted, the Applicable Conversion Price of each affected series is readjusted to the price that would have been in effect had the deemed issue never occurred, and a change in the terms of an Option or Convertible Security is treated as a new issue as of the date of the change.

Consideration received on an issuance is determined as follows: cash is taken net of amounts paid for accrued interest or dividends; property is valued at its fair value as determined in good faith by the Board of Directors; and consideration received in a transaction in which shares are issued together with other securities is allocated as the Board of Directors determines in good faith. An adjustment of less than the de minimis amount designated in the designation schedule is carried forward and made when the aggregate of the carried-forward adjustments reaches that amount.

On each adjustment the Corporation must compute the adjusted Applicable Conversion Price, prepare a certificate signed by an officer setting out the adjustment, the facts on which it is based and the resulting Applicable Conversion Price, and deliver that certificate to each holder of the affected series. A failure to deliver the certificate does not affect the adjustment, and a certificate does not effect an adjustment the terms of this Article do not require. Shares of a Shadow Series issued on a failure to participate in a financing are issued with the reduced rights designated for that Shadow Series, and the issue of a Shadow Series is not itself a Dilutive Issuance.

Adjustment events under Article IV and the corporate action each requires

Event	Effect on Conversion Price	Effect on share numbers	Notice to holders	Record to be maintained
Subdivision of the Common Stock	Proportionately decreased under Section 10(a)	Conversion Shares increase proportionately	Notice of the effective date before it occurs	Officer certificate of adjustment
Combination of the Common Stock	Proportionately increased under Section 10(a)	Conversion Shares decrease proportionately	Notice of the effective date before it occurs	Officer certificate of adjustment
Dividend payable in shares of Common Stock	Proportionately decreased on the record date	Conversion Shares increase proportionately	Notice with the record date and the ratio	Board resolution declaring the dividend
Distribution of securities other than Common Stock	Unchanged	Holder becomes entitled to the distributed security on conversion	Notice with the record date and the entitlement	Schedule of the entitlement by series
Distribution of assets or subscription rights	Unchanged	Holder becomes entitled to the asset or right on conversion	Notice with the record date and the entitlement	Schedule of the entitlement by series
Recapitalization or reclassification	Replaced by the successor security terms	Conversion delivers the successor consideration	Notice describing the successor consideration	Board resolution and successor instrument
Merger in which the Corporation is not the surviving entity	Governed by Section 5 or by the successor provision	Conversion delivers the merger consideration	Notice before the closing under Section 5	Merger agreement and Valuation Determination
Dilutive Issuance for cash	Adjusted under the designated formula	Conversion Shares increase accordingly	Certificate of adjustment to each affected holder	Consideration analysis supporting the price
Dilutive Issuance for property	Adjusted after a good-faith valuation	Conversion Shares increase accordingly	Certificate of adjustment with the valuation basis	Board valuation resolution
Issue of an Option or Convertible Security	Adjusted on the deemed issue under Section 11(d)	Deemed shares counted at the maximum issuable	Certificate of adjustment on the deemed issue	Instrument file with the maximum share number
Change in the terms of an outstanding Option	Treated as a new issue on the date of change	Deemed shares recomputed	Certificate of adjustment on the change	Amendment instrument and recomputation
Expiry of an unexercised Option	Readjusted as if the deemed issue had not occurred	Deemed shares removed from the count	Notice of readjustment to affected holders	Expiry record in the award ledger
Cancellation of a Convertible Security	Readjusted as if the deemed issue had not occurred	Deemed shares removed from the count	Notice of readjustment to affected holders	Cancellation instrument
Issuance within an Excluded Issuance	No adjustment	No change	No notice required under Article IV	Category determination retained with the issuance

Event	Effect on Conversion Price	Effect on share numbers	Notice to holders	Record to be maintained
category				file
Adjustment below the de minimis amount	Carried forward until the aggregate is reached	No change until the adjustment is made	Notice when the carried-forward amount is applied	Running record of carried-forward adjustments
Issue of a Shadow Series on a failure to participate	No adjustment; not a Dilutive Issuance	Shadow Series issued with reduced rights	Notice to the non-participating holder	Financing participation record
Repurchase of Common Stock at or below the applicable price	No adjustment	Outstanding shares reduced	No notice required under Article IV	Permitted Repurchase resolution and payment record

Article IV, Section 12 - Mandatory Conversion

All outstanding shares of each series of Preferred Stock convert automatically into Common Stock, at the Applicable Conversion Price for that series then in effect, on the Mandatory Conversion Date. The Mandatory Conversion Date is the earlier of the closing of a Qualified Public Offering and the date specified in a notice given by the Requisite Holders of that series electing to convert the series.

A Qualified Public Offering means a firm commitment underwritten public offering of Common Stock on a Trading Market which satisfies the offering price and aggregate proceeds conditions designated in the designation schedule, in each case before deduction of underwriting discounts and commissions. A direct listing or a transaction with a special purpose acquisition vehicle is a Qualified Public Offering only if the Requisite Holders of each series so elect.

On the Mandatory Conversion Date the outstanding shares of the converting series are treated as converted whether or not the certificates representing them have been surrendered, the rights attaching to them cease other than the right to receive the Conversion Shares, and the Corporation is not obliged to issue the Conversion Shares to a holder until the certificate or book-entry instruction is delivered. The treatment of Unpaid Accrued Dividends on a mandatory conversion is the treatment designated for the series.

Shares of a series converted under this Section are retired and may not be reissued, and the Corporation must file a certificate eliminating the designation of a series of which no share remains outstanding. A mandatory conversion of one series does not of itself convert another series.

Article IV, Section 13 - Redemption

Shares of the series designated as redeemable are redeemable at the election of the Requisite Holders of that series, made by a Redemption Notice given to the Corporation on or after the date designated for that series and specifying the Redemption Date, which may not be earlier than the notice period designated for the series. The Redemption Price for a share is the amount designated for the series, together with the Unpaid Accrued Dividends on that share to the Redemption Date.

On the Redemption Date the Corporation must redeem the shares as to which the election has been made, to the extent of assets lawfully available for the purpose. Where the assets lawfully available are insufficient, the Corporation redeems shares rateably among the electing holders in proportion to the Redemption Price payable to each, and the balance of the shares remains outstanding with the Corporation's obligation continuing, so that the Corporation applies assets to the redemption as and when they become lawfully available without a further Redemption Notice.

A share redeemed under this Section is retired and may not be reissued as a share of that series. From the Redemption Date, or from the date on which the Redemption Price for a share is paid or set aside if later, the rights attaching to that share cease other than the right to receive the Redemption Price. A holder is not entitled to interest on an unpaid Redemption Price.

The exercise of the redemption right by some holders of a series does not oblige any other holder of that series to exercise it, and does not accelerate any other payment by the Corporation. A waiver of the redemption right, whether by an individual holder or by the Requisite Holders of the series, applies only to the occasion described in the waiver.

Article IV, Section 14 - Reissuance, Legends and the Prior Series

A share of Preferred Stock that has been converted, redeemed or otherwise acquired by the Corporation is cancelled and is not reissued as a share of that series. The authorized number of shares of the series is reduced accordingly, and the

Corporation must file the certificate that reduction requires. A share of Common Stock acquired by the Corporation returns to the status of authorized but unissued Common Stock.

Each certificate representing shares of Preferred Stock, and each book-entry notation for such shares, bears the legends required by the agreements to which the holder is party and by the Securities Act of 1933, as amended, together with a legend recording that the shares are subject to restrictions on transfer of the kind Delaware law permits a corporation to impose (8 Del. C. § 202). The Corporation may refuse to record a transfer made in contravention of a legend.

The designation of the Prior Series, being the Series Seed Preferred Stock and the Series A Preferred Stock, continues in effect as to the shares of those series outstanding on the filing of this certificate, with the rights set out in this Article. A right conferred on a Prior Series by the certificate as previously in effect which is not carried into this Article, and which has been waived or has lapsed by its own terms, is not revived by this certificate.

Article V - Bylaws

The Board of Directors is expressly authorized to adopt, amend or repeal the bylaws of the Corporation, subject to the approvals required by Section 7 of Article IV. The stockholders also have power to adopt, amend or repeal the bylaws, and a bylaw adopted by the stockholders may not be amended or repealed by the Board of Directors if the resolution adopting it so provides.

The bylaws fix the manner of calling and conducting meetings of stockholders and of the Board of Directors, the quorum requirements, the officers of the Corporation and their authority, and the procedures for stockholder nominations and proposals. A provision of the bylaws inconsistent with this certificate is ineffective to the extent of the inconsistency.

Article VI - Board of Directors

The business and affairs of the Corporation are managed by or under the direction of the Board of Directors, as the Delaware corporation statute provides (8 Del. C. § 141). The authorized number of directors constituting the Board of Directors is fixed from time to time as the bylaws provide, subject to the approval required by Section 7 of Article IV for a change in that number and to the designation rights recorded in the voting agreement among the Corporation and its stockholders.

Directors are elected at each annual meeting of stockholders and hold office until the next annual meeting and until a successor is elected and qualified, subject to earlier resignation or removal. The election of directors need not be by written ballot unless the bylaws so provide, and cumulative voting in the election of directors is not permitted.

A director may be removed, with or without cause, by the holders of the shares entitled to elect that director, voting as a separate class where this certificate or the voting agreement so provides. A vacancy in a directorship, however arising, is filled by the holders of the shares entitled to elect that director, and not by the remaining directors, except where those holders have not exercised the right within the period the voting agreement states.

A director is not disqualified from participating in a matter by reason of an interest in it, and a transaction between the Corporation and a director or an entity in which a director has an interest is not void or voidable solely for that reason where the conditions the statute prescribes are satisfied (8 Del. C. § 144). A director with an interest in a matter must disclose the interest to the Board of Directors and, where the bylaws or a resolution of the Board so requires, refrain from voting on it.

Article VII - Indemnification, Advancement and Exculpation

A director of the Corporation is not personally liable to the Corporation or its stockholders for monetary damages for breach of fiduciary duty as a director, to the fullest extent the Delaware corporation statute permits. The exculpation conferred by this Article does not extend to a liability the statute provides may not be eliminated or limited, and does not affect the availability of equitable relief.

The Corporation must indemnify each person who is or was a director or officer of the Corporation, and may indemnify each person who is or was an employee or agent, against expenses, judgments, fines and amounts paid in

settlement actually and reasonably incurred in connection with a proceeding to which the person is party by reason of that position, to the fullest extent permitted by law under the statutory indemnification provision (8 Del. C. § 144).

Expenses incurred by a director or officer in defending a proceeding are advanced by the Corporation before its final disposition, on receipt of an undertaking by or on behalf of that person to repay the amount advanced if it is ultimately determined that the person is not entitled to be indemnified. The Corporation may enter into an indemnification agreement with a director or officer conferring rights not less favourable than those this Article confers.

The rights conferred by this Article are not exclusive of any other right a person may have, continue as to a person who has ceased to be a director or officer, and inure to the benefit of that person's heirs, executors and administrators. The Corporation is authorized to purchase and maintain insurance on behalf of any such person against a liability asserted against that person in that capacity, whether or not the Corporation would have power to indemnify against it. A repeal or amendment of this Article does not adversely affect a right existing at the time of the repeal or amendment in respect of an act or omission occurring before it.

Article VIII - Forum for Adjudication of Certain Disputes

Unless the Corporation consents in writing to an alternative forum, the sole and exclusive forum for a derivative action brought on behalf of the Corporation, an action asserting a breach of a fiduciary duty owed by a director, officer or stockholder of the Corporation, an action asserting a claim arising under the Delaware corporation statute or this certificate or the bylaws, and an action asserting a claim governed by the internal affairs doctrine, is the Court of Chancery of the State of Delaware, or, if that court lacks subject matter jurisdiction, another state or federal court sitting in the State of Delaware.

Unless the Corporation consents in writing to an alternative forum, the federal district courts of the United States are the exclusive forum for an action asserting a cause of action arising under the Securities Act of 1933, as amended. Any person who acquires an interest in a share of capital stock of the Corporation is deemed to have notice of and consented to the provisions of this Article, and consents to personal jurisdiction in the designated forum for an action brought to enforce this Article.

If a provision of this Article is held invalid or unenforceable, that holding does not affect the validity of the remainder of this Article or of this certificate, and the provision is enforced to the fullest extent permitted. This Article does not apply to a claim as to which the designated forum lacks jurisdiction over an indispensable party.

Article IX - Amendment of this Certificate and of the Bylaws

The Corporation reserves the right to amend, alter, change or repeal a provision of this certificate in the manner the statute prescribes (8 Del. C. § 242), and a right conferred on a stockholder by this certificate is subject to that reservation. An amendment is effective on the filing of the certificate of amendment with the Secretary of State of the State of Delaware, or at the later effective time the certificate of amendment specifies.

An amendment of this certificate which requires an approval under Section 7 of Article IV may not be adopted without that approval, whether or not the amendment would otherwise be within the power of the Board of Directors and the holders of a majority of the voting power. An amendment which by its terms adversely affects one series and not another requires the approval of the affected series voting as a separate series.

The reservation in this Article does not authorize the Board of Directors to amend the designation of a series so as to reduce a right that has accrued in respect of a share, and does not authorize an amendment to be given retrospective effect against an act done or an amount accrued before it becomes effective.

Article X - Severability, Construction and Headings

If a provision of this certificate is held invalid, illegal or unenforceable, the remaining provisions continue in full force, and the provision held invalid is reformed to the minimum extent necessary to render it valid and enforceable while preserving as nearly as possible the intent it expresses. A provision which is invalid as applied to one class or series remains effective as applied to another.

Where a provision of this certificate is capable of two constructions, one of which is consistent with the Delaware corporation statute and one of which is not, the construction consistent with the statute prevails. A reference in this certificate to a statute is a reference to it as amended and to any successor provision, and a reference to a Section or an Article without further identification is a reference to a Section or an Article of this certificate.

Headings in this certificate are for convenience of reference only and do not affect the construction of the provisions they precede. Words in the singular include the plural and words importing one gender include the others. The index of defined terms accompanying Article IV is provided for the convenience of the reader and does not form part of the operative provisions of this certificate.

Index of terms defined in Article IV and the provision defining each

Defined term	**Defining provision**	**Classes and series affected**
Additional Shares of Common Stock	Section 11(a)	Each series of Preferred Stock
Applicable Conversion Price	Section 8(a)	Each series of Preferred Stock
Board of Directors	Article VI, Section 1	All classes
Common Stock	Section 1	Common Stock
Conversion Shares	Section 9(b)	Each series of Preferred Stock
Convertible Securities	Section 11(a)	Each series of Preferred Stock
Deemed Liquidation Event	Section 5(a)	Each series of Preferred Stock
Dilutive Issuance	Section 11(b)	Each series of Preferred Stock
Distributable Assets	Section 4(a)	All classes
Dividend Payment Date	Section 3(c)	Each series of Preferred Stock
Effective Time	Section 9(c)	Each series of Preferred Stock
Excluded Issuances	Section 11(c)	Each series of Preferred Stock
Junior Stock	Section 4(b)	Common Stock and any junior series
Liquidation Amount	Section 4(a)	Each series of Preferred Stock
Mandatory Conversion Date	Section 12(a)	Each series of Preferred Stock
Options	Section 11(a)	Each series of Preferred Stock
Original Issue Date	Section 3(a)	Each series of Preferred Stock
Original Issue Price	Section 1(c)	Each series of Preferred Stock
Parity Stock	Section 4(b)	Series Seed and Series A Preferred
Participation Cap	Section 4(c)	Series B Preferred Stock
Permitted Repurchase	Section 7(b)	Common Stock
Preferred Stock	Section 1	All series of Preferred Stock
Prior Series	Section 14(c)	Series Seed and Series A Preferred
Qualified Public Offering	Section 12(b)	Each series of Preferred Stock
Redemption Date	Section 13(b)	Series B Preferred Stock
Redemption Notice	Section 13(a)	Series B Preferred Stock
Redemption Price	Section 13(a)	Series B Preferred Stock
Requisite Series B Holders	Section 6(c)	Series B Preferred Stock
Requisite Series A Holders	Section 6(c)	Series A Preferred Stock
Requisite Seed Holders	Section 6(c)	Series Seed Preferred Stock
Reserved Shares	Section 9(f)	Common Stock
Sale of Assets	Section 5(b)	All classes
Senior Stock	Section 4(b)	Series B Preferred Stock
Series A Preferred Stock	Section 1(b)	Series A Preferred
Series B Preferred Stock	Section 1(b)	Series B Preferred
Series Seed Preferred Stock	Section 1(b)	Series Seed Preferred
Shadow Series	Section 11(g)	Series B Preferred Stock
Stated Par Value	Section 1(a)	All classes
Subsidiary	Section 7(c)	Not applicable
Surviving Entity	Section 5(a)	All classes
Trading Market	Section 12(b)	Common Stock
Unpaid Accrued Dividends	Section 3(d)	Each series of Preferred Stock
Valuation Determination	Section 5(d)	All classes
Voting Shares	Section 6(a)	All classes
Written Consent	Section 6(d)	All classes